

HEADNOTE

- “1. An "unredacted document" within the meaning of Rule 262A.3 RoP is, according to the purpose and objective of the rule, a document from which the information or evidence emerges in respect of which access or inspection is to be restricted pursuant to Rule 262A.1 RoP. In this respect, an excerpt from a complete document can be an "unredacted document". It does not need to be unredacted in the technical sense.*
- 2. Rule 262A.3 RoP does not give rise to a right of the party that is to be obligated to implement restrictions pursuant to Rule 262A.1 RoP to be able to inspect the entire document from which the excerpt was created that was introduced into the proceedings (here as an annex) and that contains the confidential information which is the subject of the confidentiality request.*
- 3. Rule 262A.3 RoP is complied with if the party affected by the requested confidentiality measures had both versions of the document introduced into the proceedings (here as an annex) (with and without confidential information, i.e. redacted and unredacted) and was thus in principle in a position to provide a sufficiently informed statement on the confidentiality request, Rule 262A.4 RoP.”*

COURT
Local Division Munich

PROCEEDINGS
Review of confidentiality order

PATENT
EP 1 955 151

Automated deployment and
configuration of applications in an
autonomically controlled distributed
computing system

KEYWORDS

Confidentiality order

unredacted document

Rule 262A

access restriction

Geheimhaltungsantrag

Überprüfungsantrag

Rule 333

Rule 262A Protection of Confidential Information**SUMMARY**

The Local Division in Munich ruled on a review of case management orders and a confidentiality order issued by the Rapporteur in infringement and nullity proceedings. The patent at issue relates to an autonomically controlled distributed computing system. The dispute concerned whether Rule 262A 3 requires the party seeking confidentiality to submit the full underlying document from which an exhibit excerpt was taken, so that the opposing party can assess the confidentiality request in context. The court held that the term "unredacted document" in Rule 262A 3 refers to the document containing the information to be protected, not necessarily the complete source document; an excerpt introduced as an exhibit can itself be the "unredacted document" for purposes of the rule. The court further held that the opposing party has no right to access the full source document under Rule 262A 3, and that the rule is satisfied where the party subject to the proposed order has received both the redacted and unredacted versions of the exhibit in question. The review request was dismissed and the original confidentiality order upheld.